

Tentative Rulings for September 4, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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1.

CASE #	CASE NAME	HEARING NAME
CVPS2304017	MIRAMORE, LLC VS TYLER	MOTION FOR JUDGMENT ON THE PLEADINGS ON COMPLAINT OF MIRAMORE, LLC

Tentative Ruling: Granted in part, denied in part.

Granted as to the 4TH, 5TH, and 6th causes of action as to Defendants White and Berkshire Hathaway without leave to amend. Denied as to 3rd cause of action.

Moving Defendants to provide notice pursuant to CCP 1019.5.

Steven Traxler ("Traxler") purchased property in Palm Springs on August 6, 2020 (the "Property"). Traxler's interest in the property has been assigned to Plaintiff Miramore, LLC. Traxler did not visit the Property prior to purchasing and relied on his real estate agents Brian Sullivan, Keller Williams Luxury Homes ("Keller Williams") and Michael Hilgenberg ("Hilgenberg") and the sellers Richard John Tyler ("Tyler") and Lisa Trafficante's ("Trafficante") disclosure statements regarding the Property. It is alleged that Tyler and Trafficante stated in the Property's listing that it had new plumbing, which was false. Plaintiff alleges that the seller's real estate agent and broker of record – John White ("White"), Berkshire Hathaway Homeservices California Properties ("Berkshire"), and AC Palm Desert Corporation ("AC Palm"), should have been aware that this assertion was false. Plaintiff contends that Traxler hired Advantage Inspection Professionals, LLC ("Advantage") to inspect the Property, which found no issues with the Property. After Traxler moved into the Property, he discovered that the plumbing did not work properly. The toilets did not flush all the way or properly fill. After retaining a plumber, it was discovered that the pipes were not new and had been destroyed by a nearby Ficus's root structure. Plaintiff had to remove massive amounts of mature landscaping and destroy the manicured grounds to fix the issue. This cost Plaintiff in excess of \$200,000. Traxler also became aware of frequent helicopter activity overhead because the Property is located in the helicopter flight path of the nearby hospital's emergency helipad. This, too, was not disclosed.

The operative Complaint, filed August 8, 2023, asserts causes of action for: (1) Violation of Civil Code § 1102; (2) Failure to Disclose Material Facts; (3) Fraud; (4) Breach of Duty to Disclose; (5) Breach of Duty to be Honest and Truthful; (6) Negligence; (7) Negligence; and (8) Negligence.

In the instant motion, White and Berkshire Hathaway (collectively, "Defendants") move for judgment on the pleadings on the third through sixth causes of action, arguing each is time-barred or insufficiently pled. They argue Civ. Code § 2079.4 imposes a two-year limitations period running from the earliest of recordation, close of escrow, or occupancy, and assert that escrow closed August 20, 2020, but the suit was not filed until August 18, 2023, well past the deadline. Defendants contend the fraud count is pled only in "knew or should have known" terms and therefore remains derivative of the section 2079 inspection and disclosure duty. They further argue the fourth and sixth causes of action restate the same duty under different labels, the fifth adds no separate facts, any residual honest

dealing duty is codified within the same article and same two-year bar, and section 438(e) commits any late filing to the Court's discretion.

In opposition, Plaintiff contends a limitations defense may be resolved at the pleading stage only if the bar appears clearly on the face of the complaint, which it does not here. Plaintiff argues section 2079.4 reaches only breaches of the article's inspection and disclosure duty, and asserts the third cause of action pleads intentional fraud (knowing falsity of the "New Plumbing" representation, intent to induce, and affirmative concealment), governed instead by the three-year discovery based period of CCP § 338(d). Plaintiff contends fraud claims against a seller's agent are not constrained by section 2079.4, and distinguishes contrary authority on the ground that no intentional broker conduct was alleged there. Plaintiff further argues the fourth, fifth, and sixth causes of action incorporate the intentional misconduct allegations and escape the two-year bar for the same reason. Procedurally, Plaintiff contends the motion is untimely under section 438(e) because it was filed nearly eight months after the 30-day cutoff measured from the January 30, 2026 initial trial date, which later continuances do not reset. Plaintiff argues that if any defect is found, leave to amend must be granted.

In reply, Defendants reiterate that whether intentional fraud is alleged turns on the facts pled, and contend every state of mind allegation uses the constructive knowledge "knew or should have known" formulation, which sounds in negligence rather than knowing falsity. They argue paragraph 46's "affirmative steps" allegation is a conclusion with no identified act, statement, date, or actor, and cannot satisfy the particularity fraud requires. Defendants further contend the exhibits attached to the Complaint disclose the very plumbing, sewer, and neighborhood noise subjects said to have been concealed, refuting deliberate concealment. They argue incorporation by reference does not change the applicable limitations period, which turns on the nature of the right sued upon. On timeliness, Defendants assert section 438(e) imposes no good cause or leave requirement and commits the question to the Court's discretion, and that the Court may alternatively treat the motion as a common law motion for judgment on the pleadings. Defendants argue leave to amend should be denied because discovery has closed and Plaintiff has not shown how any defect could be cured.

Judgment on Pleadings

A motion for judgment on the pleadings has the same function as a general demurrer, and is used to challenge defects that appear on the face of the challenged pleading or from matters that are judicially noticeable. (CCP § 438(d); *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) A defendant may move for judgment on the pleadings on the grounds that the court lacks subject matter jurisdiction over the cause of action or that the complaint does not state facts sufficient to constitute a cause of action against the defendant. (CCP § 438(c)(1)(B)(i)–(ii).) The motion may be directed at the entire complaint or at any of the causes of action stated therein. (CCP § 438(c)(2)(A).)

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer: under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321.) The court assumes the truth of, and liberally construes, all properly pleaded factual allegations in

the complaint, and may also consider matters subject to judicial notice. (*Id.* at 321.) Presentation of extrinsic evidence is not proper on a motion for judgment on the pleadings. (*Cloud, supra*, 67 Cal.App.4th at 999.)

No motion for judgment on the pleadings may be made after a pretrial conference order has been entered pursuant to CCP § 575, or within 30 days of the date the action is initially set for trial, whichever is later, unless the court otherwise permits. (CCP § 438(e).) The motion may be granted with or without leave to amend, and when granted with leave to amend, the court shall grant 30 days to file an amended complaint. (CCP § 438(h)(1)-(2).)

As a threshold matter, Plaintiff argues the motion is untimely under CCP § 438(e) because it was filed nearly eight months after the 30-day cutoff measured from the January 30, 2026 date on which the action was initially set for trial.

Section 438(e) provides that no motion for judgment on the pleadings may be made “within 30 days of the date the action is initially set for trial, whichever is later, unless the court otherwise permits.” (CCP § 438(e) [emphasis added].) By its plain terms, section 438(e) commits any late filing to the Court’s discretion. (*Id.*)

Given the current trial date of September 11, 2026, and the fact that the pleading-based issues raised in the motion may narrow the case for trial, the Court will exercise its discretion under section 438(e) to entertain the motion on the merits.

3rd Cause of Action - Fraud

The dispositive question on the third cause of action for fraud is whether it sounds in intentional fraud, governed by the three-year discovery based period of CCP § 338(d), or in breach of the statutory duty of inspection and disclosure imposed on a seller’s broker under Civ. Code § 2079, which is governed by the two-year limitations period of section 2079.4. The California cases the parties invoke draw the line as follows.

In *Loken v. Century 21-Award Properties*, the Court of Appeal held that where a “negligent misrepresentation” cause of action is “derived from the duty to inspect and disclose under section 2079,” it falls within the two-year limitations period of section 2079.4 rather than the three-year fraud period of section 338(d). (*Loken v. Century 21-Award Properties* (1995) 36 Cal.App.4th 263, 273.) The court explained that section 2079 imposes a two-pronged duty on the seller’s broker—(1) “to conduct a reasonably competent and diligent visual inspection” and (2) “to disclose all material facts such an inspection would reveal”—and that both negligence and negligent misrepresentation claims premised on breach of that duty are governed by section 2079.4. (*Id.* at 271.) The label used in the pleading is “not crucial” where “the wrongful conduct . . . alleged against [Defendants] stemmed from statutory duties imposed upon real estate brokers and salespersons by section 2079.” (*Id.* at 272.)

By contrast, in *William L. Lyon & Associates, Inc. v. Superior Court*, the Court of Appeal held that where the plaintiff’s claims “did not arise under section 2079 and are therefore not constrained by the two-year statute of limitations imposed by section 2079.4,” the ordinary limitations periods apply, including the three-year period of CCP § 338(d) for

“[f]raud . . . subject to the three-year statute of limitations.” (*William L. Lyon & Assocs., Inc. v. Sup. Ct.* (2012) 204 Cal.App.4th 1294, 1306, 1312.) The court emphasized that section 2079.24 expressly provides that the article containing sections 2079 and 2079.4 shall not be “construed to either diminish the duty of disclosure owed buyers and sellers by agents . . . or to relieve agents . . . from liability for their conduct in connection with acts governed by this article or for any breach of a fiduciary duty or a duty of disclosure.” (*Id.* at 1305–06 [internal quotation omitted].)

The California Supreme Court’s decision in *Lazar v. Superior Court* supplies the pleading standard against which Plaintiff’s fraud allegations must be measured. Fraud must be pled specifically; “general and conclusory allegations do not suffice.” (*Lazar v. Sup. Ct.* (1996) 12 Cal.4th 631, 644.) The particularity requirement “necessitates pleading facts which ‘show how, when, where, to whom, and by what means the representations were tendered.’” (*Id.* at 645.) Where the defendant is a corporate entity, the plaintiff “must ‘allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.’” (*Id.*)

The elements of fraud are (a) misrepresentation, (b) knowledge of falsity (scienter), (c) intent to induce reliance, (d) justifiable reliance, and (e) resulting damage. (*Id.* at 638.)

Here, Fraud does not fall within the section 2079.4 bar and is adequately pled under *Lazar* to survive judgment on the pleadings. The third cause of action alleges that White, as agent for the Sellers, marketed the Property on the MLS with the affirmative statement that it had “New Plumbing,” when in fact the underground plumbing was original clay pipe that had been destroyed by a Ficus root system. (Compl. ¶¶ 17, 21.) Plaintiff alleges that Defendants made this representation with the intent to induce Plaintiff to complete the purchase and that Defendants “took certain affirmative steps to ensure that Plaintiff would not discover the defects.” (*Id.* at ¶¶ 45–46.)

On its face, the pleading identifies a specific representation (the “New Plumbing” statement in the MLS), the speaker (White), the medium (the MLS listing dated on or about July 24, 2020), and an audience (prospective buyers, including Traxler). (*Id.* at ¶ 17.) Plaintiff has thus pled a discrete affirmative misrepresentation, not a mere failure to inspect and disclose, that falls on the *William L. Lyon* side of the line and is governed by the three-year period of section 338(d). (*William L. Lyon, supra*, 204 Cal.App.4th at 1306; CCP § 338(d).)

On a motion for judgment on the pleadings, the Court must accept those factual allegations as true and liberally construe them in favor of the pleader. (*Bezirdjian v. O’Reilly* (2010) 183 Cal.App.4th 316, 321.) That the pleading elsewhere uses the “knew or should have known” formulation (Compl. ¶¶ 17–18, 42–43) does not negate paragraph 44’s direct allegation of actual knowledge. It may raise a question of proof at trial, but it does not defeat the claim on the face of the pleading.

Thus, because Plaintiff has pled an affirmative misrepresentation with sufficient specificity and has alleged scienter that reaches actual knowledge of falsity, the third cause of action states a claim for intentional fraud governed by the three-year period of section 338(d), not the two-year period of section 2079.4. The section 2079.4 bar therefore does not

appear on the face of the pleading. A limitations defense may be resolved on the pleadings only where the bar “clearly and affirmatively” appears on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred. (*E-Fab, Inc. v. Accountants* (2007) 153 Cal.App.4th 1308, 1316.) DENIED

4TH, 5TH, and 6TH Causes of Action

The fourth cause of action for breach of duty to disclose, the fifth cause of action for breach of duty to be honest and truthful, and the sixth cause of action for negligence require a different analysis. Each pleads a breach of duty owed by White, as the Sellers’ agent, in connection with the inspection and disclosure of Property conditions to a prospective buyer. (Compl. ¶¶ 51–54, 60–61, 65–68.) That is precisely the statutory duty codified in Civ. Code § 2079 and subject to the two-year limitations period of section 2079.4. (Civ. Code § 2079.4; *see Loken, supra*, 36 Cal.App.4th at 271 [both negligence and negligent misrepresentation claims premised on breach of the section 2079 duty fall within section 2079.4].)

Plaintiff opposes this conclusion, arguing that the fourth, fifth, and sixth causes incorporate the intentional misconduct allegations of the third cause and thus escape section 2079.4. That argument is unpersuasive. As Defendants correctly note, the applicable limitations period turns on “the nature of the right sued upon and not the form of the action nor the relief demanded.” (*Gutierrez v. Tostado* (2025) 18 Cal.5th 222, 231 [internal quotation omitted].) Incorporating fraud allegations by reference does not convert a negligence or disclosure duty cause of action into a fraud claim; the substantive right pleaded in each of the fourth, fifth, and sixth causes of action is the section 2079 duty of inspection and disclosure. *Loken* forecloses Plaintiff’s attempt to obtain the benefit of section 338(d)’s longer period by relabeling: “the fact that Loken has labeled his fourth cause of action against [Defendants] as sounding in negligent misrepresentation is not crucial because the wrongful conduct he alleged against [Defendants] stemmed from statutory duties imposed upon real estate brokers and salespersons by section 2079.” (*Loken, supra*, 36 Cal.App.4th at 272.)

Plaintiff’s alternative reading of *Loken* is also unavailing. Plaintiff argues *Loken* is limited to its facts because “there were no facts indicating that the broker (as opposed to the seller) had engaged in intentionally fraudulent acts,” and contends that the same distinction takes the fourth, fifth, and sixth causes of action outside section 2079.4 because they incorporate the third cause of action’s intentional fraud allegations. (Pl.’s Opp. 6:10–18 [quoting *Loken, supra*, 36 Cal.App.4th at 272].) That distinction saves the third cause of action, which alleges an affirmative misrepresentation of existing fact, but it does not save the fourth, fifth, and sixth causes of action. Each of those three causes sues on a distinct legal duty, in each case the section 2079 duty of inspection and disclosure. Incorporation of the third cause of action’s intentional fraud allegations by reference does not alter the substantive right pleaded. As already discussed, “the nature of the right sued upon, and not the form of the action or the relief demanded” determines the applicable limitations period. (*Gutierrez, supra*, 18 Cal.5th at 231.)

Under section 2079.4, the two-year limitations period runs from “the date of possession, which means the date of recordation, the date of close of escrow, or the date of occupancy, whichever occurs first.” (Civ. Code § 2079.4.) Here, escrow closed on or

about August 20, 2020. (Compl. ¶ 77.) The Complaint was filed on August 18, 2023, nearly three years later, and well outside the two-year window. Thus, on the face of the pleading, the fourth, fifth, and sixth causes of action are time-barred by section 2079.4.

Nothing in *William L. Lyon* alters this conclusion. There, the buyers sued Lyon & Associates in its capacity as *buyer's* broker under a signed buyer-broker agreement, with Lyon & Associates also acting as dual agent in the transaction. (*William L. Lyon & Assocs.*, *supra*, 204 Cal.App.4th at 1306.) The Court of Appeal held that section 2079.4 was inapplicable because that section governs the statutory duty of a *seller's* broker to the buyer under section 2079, whereas the plaintiffs' claims were premised on the common law fiduciary duties Lyon & Associates owed to its own clients as buyer's broker and dual agent, claims that did not "arise under section 2079." (*Id.* at 1303–04.) Because those fiduciary claims fell outside section 2079, the fraud cause of action was governed by the three-year period of CCP § 338(d). (*Id.* at 1308.)

Here, by contrast, White is alleged to have represented only the Sellers; no buyer's broker or dual-agency relationship is alleged. (Compl. ¶¶ 15–16.) The fourth, fifth, and sixth causes of action therefore do not implicate the buyer-broker or dual-agent fiduciary duties that took the *William L. Lyon* claims outside section 2079.4. They sue on the section 2079 duty itself and fall squarely within *Loken's* reach. GRANTED

Leave to Amend

Leave to amend should be granted where there is a reasonable possibility that the defect can be cured by amendment; the burden of demonstrating such reasonable possibility rests squarely on the plaintiff. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) As to the fourth, fifth, and sixth causes of action, the limitations bar is a substantive defect that Plaintiff has not shown any facts to cure. Civ. Code § 2079.4 provides that "[i]n no event shall the time for commencement of legal action for breach of duty imposed by this article exceed two years from the date of possession, which means the date of recordation, the date of close of escrow, or the date of occupancy, whichever occurs first." (Civ. Code § 2079.4 [emphasis added].)

Here, the relevant dates are fixed: escrow closed on August 20, 2020, and the Complaint was filed on August 18, 2023. (Compl. ¶ 77.) The Sellers' 30-day occupancy after the close of escrow under the Seller Lease Back agreement (*id.* at ¶¶ 13–14) does not alter this conclusion, because section 2079.4 measures from the earliest of recordation, close of escrow, or occupancy, and close of escrow occurred first. No proposed amendment could alter these fixed statutory triggers. Plaintiff has not identified in its opposition any additional facts it could plead to place the fourth, fifth, and sixth causes of action outside section 2079.4. DENIED.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2408394	DESERT HEALTHCARE DISTRICT VS ALL PERSONS INTERESTED IN THE MATTER HEREIN DESCRIBED LEASE PURCHASE TRANSACTION AND RELATED CONTRACTS AND OBLIGATIONS OF DESERT HEALTHCARE DISTRICT WITH RESPECT TO DESERT REGIONAL MEDICAL CENTER, INC.	MOTION TO DISQUALIFY EXPERT

Tentative Ruling: Granted in part.

Granted as to Dr. Paul Wong and NERA who are disqualified from the instant proceedings. Denied as to the law firm of McDermott, Will & Schuttler, LLP.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Desert Healthcare District filed a Complaint for Validation on December 31, 2024 against all persons interested in the matter of a certain lease to purchase transaction and related contracts and obligations of Desert Healthcare District with respect to Desert Regional Medical Center. The Complaint seeks to validate the action taken by Plaintiff regarding the lease purchase agreement (LPA) and the actions of District's Board in approving a fairness opinion from an independent consultant and approving the LPA and ordering that a measure relating to approval of the LPA be placed on the ballot (Measure AA), which was approved by the voters by a margin of 72.34% .

Plaintiff-Intervenor Desert Regional Medical Center (DRMC) moves the court for an order disqualifying expert Dr. Paul Wong and National Economic Research Associates (NERA), and to disqualify McDermott, Will & Schulte, LLP and therefore disqualify McDermott, will & Schulte LLP from serving as counsel and for striking Dr. Wong's report from the record. DRMC moves on the grounds that Dr. Wong and NERA previously performed confidential consulting work for DRMC and in the course of that engagement received confidential and privileged information. DRMC further asserts that disqualification of counsel is warranted under CCP section 128(a)(5) and needed to safeguard attorney work product asserting that disqualification of counsel that retained an expert that received an adversary's confidential information is also required for the same reasons. McDermott retained Dr. Wong and is presumed to have used or obtained the Medical Center's confidential and privileged information.

DRMC asserts that when Eisenhower attached a declaration of Dr. Wong to its Answer (on June 17, 2025), Dr. Wong's CV did not include any reference to his work for the Medical Center's Affiliate, Tenet Health, but on July 16, 2026, when Eisenhower served its expert witness discover Wong's CV now discloses that reference. Accordingly, it was not until July 16, 2026 that DRMC's counsel knew of the conflict. The newest CV is attached to DRMC's counsel declaration and marked as Exhibit C. The CV reflects "*John Muir Health—Tenet Healthcare* (San Ramon Regional Medical Center): Second Request

investigation involving the acquisition of a community hospital in California.” In support of this assertion, DRMC submitted the declaration of Attorney Dione Garlick, who declares to this information.

Also in support of their motion, DRMC submitted the declaration of Attorney Richard Cunningham who declares that in 2023 he worked with Dr. Ramanarayanan and Dr. Wong of NERA on a matter for Tenet health related to Tenet’s proposed sale of its majority ownership interest in San Ramon Regional medical Center to John Muir Health. They provided consulting to Tenet’s in-house and outside counsel on that matter throughout 2023. On August 3, 2024, he contacted both Dr. Ramanarayanan and Dr. Wong to assist Tenet in preparing a letter on behalf of its affiliate DRMC in response to a letter submitted by Eisenhower Health to the Desert healthcare District. Within that email was privileged correspondence from November 2023 that related to the San Ramon matter. Later that day, Dr. Ramanarayanan responded to the email and stated he would be happy as they were not working with Eisenhower. Later that same day, he shared a draft letter written by himself and another Kirkland attorney representing Tenet with Dr. Ramanarayanan and Dr. Wong. The draft letter related to email traffic discussing Tenet’s potential strategies to respond to points raised by Eisenhower in its letter in opposition to the Lease Purchase Agreement. Later that day, Dr. Ramanarayanan sent an email titled privileged and confidential noting it was prepared at the request of counsel. Wong was ccd on that email. At no time in response to his initial email did Dr. Ramanarayanan, Dr. Wong or NERA inform him that Dr. Wong was screened from any Tenet matters, ask him not to include Dr. Wong on correspondence related to Tenet matters, inform him that Dr. Wong had been retained by Eisenhower, nor communicate that Dr. Wong had deleted the correspondent and any associated internal NERA files or correspondence related to Tenet’s response to the Eisenhower letter. The letter prepared on behalf of DRMC where Drs. Ramanarayanan and Wong were consulted was submitted to the District on August 15, 2024.

In opposition, Eisenhower asserts that DRMC claims Dr. Wong possesses a conflict for the first time 13 month after he was disclosed in this matter and has not responded to Eisenhower’s request for information. Eisenhower asserts that the court should deny the motion as Dr. Wong never actually possessed confidential information and DRMC cannot establish that he did by imputing any access by Dr Ramanayaranan to Dr. Wong. Next, Eisenhower asserts that DRMC fails to show that it possessed a reasonable expectation of confidentiality by Dr. Wong, nor have they articulated how the information is material to this action. Lastly, DRMC’s unreasonable delay in bringing the motion constitutes waiver and is prejudicial to Eisenhower on the eve of trial. As to the motion to disqualify Eisenhower’s counsel, Eisenhower asserts there is no basis to do so and it is all based on the assumption that Dr. Wong must be disqualified and that his disqualification must be imputed to counsel. DRMC advances zero allegations against McDermott regarding what allegedly confidential information it could have. But even if this Court finds that Dr. Wong must be disqualified and a rebuttable presumption exists that Dr. Wong has disclosed information to McDermott, any presumption does not withstand the weight of the evidentiary record.

In support of their opposition, Eisenhower submitted 7 declarations including those from Attorney Jason Strabo, Attorney Michelle Lowery, Attorney Tala Jayadevan, and Attorney Claire Danberg all that state that none of the attorneys were aware that Dr. Wong had

received an email from Kirkland & Ellis, LLP regarding DRMC or this litigation and that no confidential information was provided to them. Further, that it was their understanding the NERA performed a standard conflicts check prior to finalizing Dr. Wong's engagement in connection with this litigation. In fact, NERA confirmed to Eisenhower and McDermott that neither it nor Dr. Wong had a conflict regarding this litigation.

In addition, Eisenhower submitted the declarations of Dr. Paul Wong, Salvatore D'Addio and Thomas Hinchliff. Dr. Wong's declaration asserts that starting in December 2021, NERA, through him, was retained by Eisenhower to consider various matters relating to DRMC. Then in about 2024 he received an unsolicited email from Kirkland & Ellis, LLP who represents Tenet and quickly observed that it related to DRMC. He immediately closed the email and informed his NERA colleague that he could not work on anything for DRMC and took no further action with respect to the initial Kirkland 2024 email or the subject matter described in it. He did not respond to the email, communicate with Kirkland Ellis regarding the matter, nor download or otherwise save the email or any of its attachments. Neither he, nor NERA was ever retained by DRMC in connection with the matter referenced in the email nor did NERA ever enter into an engagement agreement with DRMC and never billed DRMC for any professional services. Any subsequent email thread that he may have inadvertently been added to, he does not recall receiving or opening the email and did not rely on its contents with respect to his work on this matter. The report was based on publicly available information only.

The declaration of Salvatore D'Addio, Manager for NERA, states that based on NERA's records they have never entered into an agreement with DRMC or its counsel on behalf of DRMC. The declaration of Thomas Hinchliff, Global Billing Manager, NERA declares that based on a review of NERA records they have never billed DRMC, or its counsel on behalf of DRMC.

In reply, DRMC asserts that in 2024 prior to retaining Dr. Wong and NERA, DRMC specifically inquired about whether they represented Eisenhower and were told they did not. Thereafter, DRMC sent Dr. Wong and NERA attorney-client and attorney work product privileged materials, not just about this dispute, but about Eisenhower's complaint in the matter specifically. Two years later, Dr. Wong now admits that he literally switched sides and took on the representation of the Medical Center's adversary in these proceedings—Eisenhower—in the very same matter he and NERA assisted the Medical Center. He must be disqualified from doing so. And McDermott, having retained Dr. Wong, must now also be disqualified.

Motion to Exclude Expert Wong and NERA

A party seeking to disqualify an expert must show that the expert possesses confidential attorney-client privileged information materially related to the proceedings before the court. (See, e.g., *DeLuca v. State Fish Co.* (2013) 217 Cal.App.4th 671, 691; *Western Digital Corp. v. Superior Court* (1998) 60 Cal.App.4th 1471, 1487; *In re Complex Asbestos Litigation* (1991) 232 Cal.App.3d 572, 596.) The party seeking disqualification is not "required to disclose the actual information contended to be confidential." (*In re Complex Asbestos Litig.*, supra, 232 Cal.App.3d at p. 596.) The court need only "be provided with the nature of the information and its material relationship to the proceeding." (*Id.*)

Here, it is clear from the declarations submitted from both parties that Dr. Wong and NERA were never specifically retained by DRMC regarding the matters at issue in this litigation. To the extent that Dr. Wong was included on two emails (which he says he did not read or save) related to providing consulting services related to how to respond to Eisenhower's letter to the District, it is unclear what confidential information was provided related to the matters in this action. Attorney Cunningham's email specifically declares that the confidential information at issue was "The content beginning at the bottom of page 3 that is redacted from November 2023 that relates to the San Ramon matter..." That matter has no connection to the instant action.

What is a closer call though is the Exhibit 1, p.1. of Attorney Cunningham's declaration where "potential strategies to respond to points raised by Eisenhower in its letter in opposition to the Lease Purchase Agreement." However, while Dr. Wong states in his declaration that he did not read or retain any confidential information provided by DRMC it is very clear that he (more importantly his employer who could have benefited from better conflict screening practices) received and had access to confidential information related to the proceedings before this court. This court must grant the instant motion. Dr. Paul Wong and NERA are disqualified as expert witnesses in these proceedings.

Attorney/Firm Disqualification

A trial court's authority to disqualify an attorney derives from the power inherent in every court to control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto. (C.C.P., § 128(a)(5); see also *People v. Speedee Oil Change Sys., Inc.* (1999) 20 Cal.4th 1135, 1145.)

A party moving to disqualify counsel carries the burden of establishing by a preponderance of the evidence that a substantial relationship exists. (See *H.F. Ahmanson & Co. v. Salomon Bros.* (1991) 229 Cal.App.3d 1445, 1452.) Where an attorney successively represents one client following the prior representation of another client, the Court's concern is to enforce the duty of confidentiality owed to the former client. (*Flatt v. Superior Court* (1994) 9 Cal.4th 275, 283.)

"Before an attorney may be disqualified from representing a party in litigation because his representation of that party is adverse to the interest of a current or former client, it must first be established that the party seeking the attorney's disqualification *was or is 'represented'* by the attorney in a manner giving rise to an attorney-client relationship." (*Civil Service Comm'n v. Sup. Ct.* (1984) 163 Cal.App.3d 70, 76-77 [emphasis added].) "An attorney represents a client—for purposes of a conflict of interest analysis—*when the attorney knowingly obtains material confidential information from the client and renders legal advice or services as a result.*" (*People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1148, (*Speedee Oil*) [emphasis added]; see *Marriage of Zimmerman* (1993) 16 Cal.App.4th 556, 564-565.) Determination of the existence of an attorney-client relationship is generally a question of law. (*Meehan v. Hopps* (1956) 144 Cal.App.2d 284, 287.)

Here, there is not any prior relationship between counsel and opposing parties. However, there is a presumption that the subject law firm may have gained access to confidential

information through the retention of an expert witness. Specifically, Dr. Wong may have disclosed confidential information and attorney work product to McDermott law firm. Yet, the disclosure in question relates to a public response that the parties are well past. At this stage in the proceedings, moving party has failed to establish prejudice (past, present, or future) from this past disclosure as this stage of the proceedings.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2408394	DESERT HEALTHCARE DISTRICT VS ALL PERSONS INTERESTED IN THE MATTER HEREIN DESCRIBED LEASE PURCHASE TRANSACTION AND RELATED CONTRACTS AND OBLIGATIONS OF DESERT HEATLHCARE DISTRICT WITH RESPECT TO DESERT REGIONAL MEDICAL CENTER, INC.	MOTION TO STRIKE NOTICE OF LODGING

Tentative Ruling: Granted.

Moving party to provide notice pursuant to CCP 1019.5.

Eisenhower's Notice of Lodging and Supplement to the Administrative Record is stricken in its entirety.

Plaintiff Desert Healthcare District filed a Complaint for Validation on December 31, 2024 against all persons interested in the matter of a certain lease to purchase transaction and related contracts and obligations of Desert Healthcare District with respect to Desert Regional Medical Center. The Complaint seeks to validate the action taken by Plaintiff regarding the lease purchase agreement (LPA) and the actions of District's Board in approving a fairness opinion from an independent consultant and approving the LPA and ordering that a measure relating to approval of the LPA be placed on the ballot (Measure AA), which was approved by the voters by a margin of 72.34% .

Plaintiff Desert Healthcare District and Plaintiff-Intervenor Desert Regional Medical Cetner move the court to strike Eisenhower Medical Cetner's Notic of Lodging of Documents Conditionally under seal on August 5, 2026, labeled Eisenhower's supplement to the administrative record (Eisenhower_00000001 – Eisenhower_00006746, including the expert report of Paul Wong. Plaintiffs move pursuant to CCP section 128(a), 435 and 436 on the grounds that Eisenhower has no right, statutorily or otherwise, to supplement or augment the administrative record, which duty is assigned exclusively to the agency that made the decision.

In opposition, Eisenhower asserts that the evidence submitted s properly submitted and complies with CRC and Local Rules that require Eisenhower to lodge confidential materials before offering them into evidence at trial. Therefore, Eisenhower lodged its supplement to the administrative record to ensure that it preserved its right to offer this evidence at trial. Further, Eisenhower asserts that its notice of lodging is consistent with the court's August 3, 2026 order. Eisenhower also asserts that the motion to strike is an

improper vehicle to challenge admissibility of Eisenhower's expert evidence. Eisenhower asserts that courts routinely supplement the administrative record with expert evidence and doing so is appropriate here. Eisenhower asserts that courts routinely supplement the administrative record with expert evidence, and expert evidence is standard in validation actions. Further, Dr. Wong's opinions are relevant and probative evidence that the LPA is unlawful. Lastly, Eisenhower asserts that whether expert testimony is admissible at trial is premature and should be addressed in accordance with trial procedures.

In reply, Plaintiffs assert that Eisenhower does not have a right to supplement the administrative record and no rule compelled it to do so. Further, Plaintiffs assert that Eisenhower violated the court's August 3, order denying his request to supplement the administrative record and a motion to strike is the proper vehicle to challenge the improper lodging. Lastly, Plaintiffs assert that Eisenhower's arguments about the admissibility of expert testimony are meritless. Eisenhower failed to follow the appropriate procedures to introduce extra-record evidence and cannot supplement the administrative record in this fashion. Further, Plaintiffs assert that Eisenhower failed to establish the expert materials should be admitted in this validation action and Dr. Wong's opinions are irrelevant.

Augmenting of Administrative Record

CCP section 1094.6(c) assigns the duty to create the administrative record.

On August 3, 2026, this court ordered District to file an augmented record and identified what must be contained in the administrative record. Eisenhower does not have the right to file supplements to the administrative record, and this court pursuant to CCP section 436 has the right to strike the filing as not being filed in conformity with law.

Granting this motion does not in any fashion indicate the court's ruling on the admissibility of the evidence Eisenhower seeks to introduce. However, they cannot augment the administrative record.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2501784	KG MULLEN INC., A CALIFORNIA CORPORATION VS FAWAZ, AN INDIVIDUAL	MOTION TO VACATE DEFAULT BY ISABELLA FAWAZ, AN INDIVIDUAL

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This is a matter involving the sale of real property that was encumbered with a mechanic's lien case. It is alleged that on February 22, 2022, Plaintiff KG Mullen, Inc. ("Plaintiff") entered into a written contract with Defendant Isabella and Moet Fawaz ("Fawaz") whereby Plaintiff agreed to provide specified construction-related services including labor and materials necessary for the substantial improvements to a residential property in Palm Desert, California ("Subject Property"). Over the course of the construction project, the scope of the work was modified through written and verbal change orders that

increased the cost of the project. Plaintiff alleges that Fawaz failed to make all payments. As a result, Plaintiff was unable to complete all work on the project. On December 17, 2024, Plaintiff recorded a mechanic's lien against the Subject Property. On December 23, 2024, Fawaz transferred titled to the Subject Property to Defendants Rebecca and Jonathan Polaks ("Defendants" or "Polaks").

Plaintiff filed their Complaint on March 14, 2025, and the operative Second Amended Complaint ("SAC") on August 1, 2026. The SAC includes six causes of action for: (1) Breach of Contract; (2) Foreclosure of Mechanic' Lien; (3) Quantum Meruit and Quantum Valebant; (4) Account Stated; (5) Open Book Account; and (6) Unjust Enrichment. On September 29, 2025, the Polaks filed a Cross-Complaint against the Fawaz for: (1) Equitable Indemnification; (2) Contribution; and (3) Fraud.

Moving Defendant, Isabella Fawaz, seeks to set aside default previously entered on April 16, 2026 after she was served by substitute service at her father's home, co-defendant Moet Fawaz (who also has his own separate motion to set aside default). Specifically, Defendant Isabella Fawaz argues that she was not residing at her father's home.

Here, the court finds that proper service was effectuated by substitute service on March 4, 2026 pursuant to CCP 415.20(b). The court notes that her purported actual address at the time was in Los Angeles County while she attended Pepperdine University. However, service was effectuated at her usual place of abode in Agoura Hills, CA, which is a short 10-15 minute drive to Pepperdine University. The address is the same listed in a contract in the underlying matter (Exhibit 5 Contract Proposal to Cross Complaint's Opp.) Moreover, and of greater weight, her father a co-defendant in the instant matter was served at the same location. There is not anything in the moving Defendant's declaration that she does not reside at that location other times of the year or that she does not communicate with her father. The court also notes, her legal address, which would appear on a government issued identification card, is also missing from her declaration. While certainly not required, it would strengthen her argument that service was improper at her father's home. The court finds the evidence does not support this service was not valid and that she was not aware of it.

Finally, moving Defendant has precluded this court from ruling on discretionary ground pursuant to CCP 473.5 by failing to comply with procedural requirements. The notice of motion on discretionary grounds must be accompanied by a declaration showing defendant's lack of actual notice and that this lack of notice was not caused by his or her avoidance of service or inexcusable neglect. (C.C.P. §473.5(b); *Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1319.) The defendant must also file with the notice of motion a copy of the answer, motion or other pleading proposed to be filed in the action. (C.C.P. §473.5(b).) Counsel for Defendant specifically recognized that by stating that they were not including any proposed responsive pleading on their notice of motion.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2501784	KG MULLEN INC., A CALIFORNIA CORPORATION VS FAWAZ, AN INDIVIDUAL	MOTION TO VACATE DEFAULT BY MOET FAWAZ, AN INDIVIDUAL

Tentative Ruling: Granted.

Court to provide notice pursuant to CCP 1019.5.

Default on cross complaint of Moet Fawaz on October 18, 2025 is ordered vacated and set aside.

This is a matter involving the sale of real property that was encumbered with a mechanic's lien case. It is alleged that on February 22, 2022, Plaintiff KG Mullen, Inc. ("Plaintiff") entered into a written contract with Defendant Isabella and Moet Fawaz ("Fawaz") whereby Plaintiff agreed to provide specified construction-related services including labor and materials necessary for the substantial improvements to a residential property in Palm Desert, California ("Subject Property"). Over the course of the construction project, the scope of the work was modified through written and verbal change orders that increased the cost of the project. Plaintiff alleges that Fawaz failed to make all payments. As a result, Plaintiff was unable to complete all work on the project. On December 17, 2024, Plaintiff recorded a mechanic's lien against the Subject Property. On December 23, 2024, Fawaz transferred titled to the Subject Property to Defendants Rebecca and Jonathan Polaks ("Defendants" or "Polaks").

Plaintiff filed their Complaint on March 14, 2025, and the operative Second Amended Complaint ("SAC") on August 1, 2026. The SAC includes six causes of action for: (1) Breach of Contract; (2) Foreclosure of Mechanic' Lien; (3) Quantum Meruit and Quantum Valebant; (4) Account Stated; (5) Open Book Account; and (6) Unjust Enrichment. On September 29, 2025, the Polaks filed a Cross-Complaint against the Fawaz for: (1) Equitable Indemnification; (2) Contribution; and (3) Fraud.

Moving Defendant, Moet Fawaz, seeks to set aside default previously entered on October 18, 2025, after he was personally served).

Here, the court finds that proper service was effectuated on Defendant Moet Fawaz on October 18, 2025. There is not anything in the moving papers refuting the photographic evidence of his service. Like his daughter, he was served at the address obtained from the underlying contract in this suit (Exhibit 5 Contract Proposal to Cross Complaint's Opp.) The proof required to set aside the default for invalid service is woefully lacking.

As to discretionary relief pursuant to CCP 473.5. There is a strong judicial preference for matters to be decided on their merits when possible. Defendant Moet Fawaz appears to have waited over 6 months to bring the instant request for relief. However, there is a proposed answer submitted with his moving papers. The court will exercise discretion and set aside the default with an order that the proposed answer be filed within 5 days of this order becoming final.

Moving Defendant Moet Fawaz is ordered to pay Cross Complainant \$1,000.00 within 30 days of this order becoming final. The court is empowered to grant relief on “whatever terms may be just.” (CCP 473.5(c).) The court encourages all parties moving forward to be diligent in their responses to the underlying lawsuit.